

The complaint alleges a total of 30 pages without exhibits, and lists a total of 133 paragraphs. The complaint includes many factual allegations relating to the parties' relationship with Settlor, Defendant's handling and caretaking of Settlor, communications with Settlor, Defendant's handling of Settlor's finances, and the actions that unfolded when the second trust was created.

Defendant was served with the following discovery requests by Plaintiff:

- a. Three sets of Requests for Admissions (Decl. of Duncombe, ¶ 3, Exhibit "E");
- b. Three sets of Special Interrogatories (Decl. of Duncombe, ¶ 3, Exhibits "A," "B," and "C" respectively);
- c. Three sets of Request for Production of Documents, Set No. One (Decl. of Duncombe, ¶ 3, Exhibit "G");
- d. Two sets of Request for Production of Documents, Set No. Two Decl. of Duncombe, ¶ 3, Exhibit "F"); and finally,
- e. Three sets of Form Interrogatories, set one (Decl. of Duncombe, ¶ 3, Exhibit "E").

Governing law

A protective order may be obtained if the relief is sought "promptly" (Code Civ. Proc. §§ 2030.090(a) [protective order for interrogatories, 2031.060(a) [protective order for requests for production], 2033.080(a) [protective order for requests for admissions]).

The burden is on the moving party to establish "good cause" for whatever order is sought. (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255 (interrogatories); *Stadish v. Super. Ct.* (1999) 71 Cal.App.4th 1130, 1145 (document requests).) "Good cause" requires specific facts demonstrating unwarranted annoyance, embarrassment, oppression, or undue burden and expense. (*Goodman v. Citizens Life & Cas. Ins. Co.* (1967) 253 Cal.App.2d 807, 819; Code Civ. Proc. §§ 2030.090(b), 2031.060(b).) The discovery burden is "undue" only if the inconvenience and expense of responding clearly outweighs the benefits likely to be obtained if the interrogatories are answered. (Code Civ. Proc. §§ 2019.030(a), 2030.090(b).)

In considering whether discovery is unduly burdensome or expensive, warranting a protective order, the court takes into account the needs of the case, the amount in controversy, and the importance of the issues at stake in the litigation. (*People ex rel. Harris v. Sarpas* (2014) 225 Cal.App.4th 1539, 1553).

Timeliness

A protective order should be "reasonably made", normally within the 30-day period for answering discovery or within the period of the stipulated extension. (*Willis v. Superior Court* (1980) 112 Cal.App.3d 277, 289 fn. 5). See also Code Civ. Proc. §§ 2030.260(a), 2031.300(a), 2033.080(a) [30 days to respond to interrogatories, requests for admissions, and requests for production]).

The motion was filed on February 3, 2025. However, the following discovery sets were served in November of 2024: Jack Saba's requests for production, set one, John Saba's first set of requests for production, set one, George Saba's requests for production, set one, and all three Plaintiffs' special interrogatories, set one.

Defendant has not shown that Plaintiffs granted her an extension to file this motion and/or raise Defendant's objections. Furthermore, Defendant failed to establish in her motion that she objected to any of these discovery requests in a timely manner.

Accordingly, the court DENIES the motion for a protective order as to all three Plaintiffs' Requests for Production, Set One, and Special Interrogatories, Set One.

Meet and Confer

A motion for a protective order must be accompanied by a declaration showing the moving party made a reasonable and good faith attempt to resolve the issues outside of court. (Code Civ. Proc. §§ 2016.040, 2030.090(a), 2031.060(a), 2033.080(a).)

Plaintiffs contend that Defendant did not properly meet and confer before filing this motion. Code Civ. Proc. § 2016.040 requires the following: "A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion."

Defendant's counsel, Mr. Duncombe, declared that on December 30, 2024, he sent a meet and confer letter to Plaintiffs. (Ex. H to Decl. of Duncombe). This letter sets forth Defendant's position and proposes that the parties stipulate to limit discovery. The court finds this to be sufficient.

Notice of Motion

Next, Plaintiffs contend that Defendant's notice of motion is improper/insufficient because it does not specify the sets of discovery that Defendant seeks to limit. However, the memorandum of points and authorities makes clear that Defendant is seeking to impose limitations on the general amount of interrogatories, requests for admissions, and requests for production that Plaintiffs propounded.

Accordingly, the court will address the merits of the discovery sets that Defendant timely objected to.

George, Jack and John Saba's Form Interrogatories, Set One

First, with regards to the form interrogatories, Plaintiffs each propounded 26 form interrogatories to Defendant. Defendant has not shown that these form interrogatories are so burdensome as to warrant a protective order.

Accordingly, the court DENIES the motion as to Plaintiffs George, Jack and John Saba's Form Interrogatories, set one.